

TENTATIVE RULING

Anthony J. Reed

v.

California Department of Corrections and Rehabilitation, et al.

26CV000102

Respondents' Demurrer to Petition for Writ of Mandate

Hearing Date: July 31, 2026

The demurrer of Respondents California Department of Corrections and Rehabilitation ("CDCR"), Jeffrey Macomber, and Kelly Santoro (collectively, "Respondents") to the Petition for Writ of Mandate and Declaratory Relief ("Petition") filed by Petitioner Anthony J. Reed ("Petitioner") on sufficiency grounds [Code Civ. Proc. § 430.10, subd. (e)] is **SUSTAINED WITH LEAVE TO AMEND**. Respondents' Request for Judicial Notice is **GRANTED**. Petitioner has 30 days from the date of service of the Notice of the Court's signed order to file and serve an amended Petition. Respondents shall prepare the Proposed Order consistent with this Tentative Ruling.

The further Case Management Conference ("CMC") following the demurrer hearing is **MAINTAINED**.

Legal Standard.

A demurrer for sufficiency assesses whether the pleading properly states a cause of action. [*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; Code Civ. Proc. § 430.10, subd. (e).] When courts evaluate demurrers, they interpret the allegations broadly and in context. [*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.] In a demurrer, defects must be visible on the face of the pleading or by proper judicial notice. [Code Civ. Proc. § 430.30, subd. (a).] A demurrer examines only the pleadings, not the evidence, counsel's arguments, or external facts. [*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905; *Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.]

Request for Judicial Notice.

Respondents' request to judicially notice Rulemaking File No. 2021-1110-02 for Title 15, Section 3269, of the California Code of Regulations [Exh. A] is **GRANTED**. [Evid. Code § 452, subd. (c).]

Discussion.

Petitioner challenges CDCR's 2022 promulgation of inmate-housing regulations and alleges violations of the Administrative Procedures Act, substantive invalidity of the regulations, and a right to single-cell housing. After review of the Petition, the demurrer, and the judicially

noticeable rulemaking file, the Court finds that Petitioner has failed to allege facts showing Respondents violated any ministerial duty related to rulemaking.

“Generally, a writ of ordinary mandate will lie when (1) there is no plain, speedy and adequate alternative remedy, (2) the public official has a legal and usually ministerial duty to perform, and (3) the petitioner has a clear and beneficial right to performance.” [*Menefield v. Foreman* (2014) 231 Cal.App.4th 211, 216-217 (citation omitted); *see also AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 700, and Code Civ. Proc. § 1085.] Furthermore, to state a claim against a public entity, the plaintiff must plead each material fact with particularity. [*Lopez v. So. Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.]

Petitioner sufficiently alleges the first and third elements of mandamus—lack of an adequate alternative remedy and beneficial interest. Respondents’ argument that habeas corpus is the “adequate remedy” is not persuasive. A habeas petition cannot vacate statewide regulations and is not the proper vehicle for the relief sought here. Petitioner also alleges a beneficial interest because inmate-housing regulations directly affect him.

However, Petitioner fails to sufficiently allege with particularity facts supporting the second element of mandamus: ministerial duty to perform. The statutes Petitioner relies on—Government Code sections 11347.3 and 11346.9—impose ministerial obligations on the rulemaking agency (CDCR and its Secretary), but only with respect to materials that exist and were actually relied upon in the rulemaking process. The Petition generally alleges that Respondents failed to include all required information, but Petitioner identifies only one alleged omission: “2018 Office of Internal Oversight and Research SNY Statistical Data.” [Petition at ¶¶ 26-30.] Petitioner’s general allegation that Respondents omitted unspecified data and information is insufficient. To state a claim against a public entity, the facts must be pleaded with specificity. [*Lopez*, 40 Cal.3d at 795.] To the extent that Petitioner alleges that the 2018 report was omitted, the judicially noticeable rulemaking file includes that data. Because judicially noticeable facts control over contrary allegations, the Petition’s assertion of an omission is negated. Petitioner does not otherwise allege with specificity any data or material that Respondents were required—but failed—to include.

Petitioner also fails to allege a ministerial duty owed by Warden Santoro. By statute, CDCR and its Secretary—rather than wardens—exercise rulemaking authority. [Pen. Code §§ 5055, 5058; *In re Cabrera* (2012) 55 Cal.4th 683, 688.] Thus, a prison warden like Warden Santoro has no legal obligation to maintain rulemaking files or to include materials therein. [Gov. Code § 11347.3.] The Court will not issue a separate ruling on Respondents’ “misjoinder” argument concerning Warden Santoro, as the argument is subsumed within the failure-to-state-a-claim analysis.

Because the Petition does not allege facts establishing a violation of a ministerial duty, the mandamus claim is legally insufficient. The demurrer to the First Cause of Action for writ of mandate is **SUSTAINED WITH LEAVE TO AMEND**.

The demurrer to the declaratory relief cause of action is also **SUSTAINED WITH LEAVE TO AMEND**. Declaratory relief is wholly derivative of the mandamus claim. [*Ball v.*

FleetBoston Financial Corp. (2008) 164 Cal.App.4th 794, 800.] Where the underlying statutory challenge fails, declaratory relief must also be dismissed. Petitioner may amend this cause of action along with the mandamus claim.

Conclusion.

Respondents' demurrer to the Petition is **SUSTAINED WITH LEAVE TO AMEND**. Leave to amend is appropriate because Petitioner has not previously amended, and amending the Petition is not clearly futile. Petitioner must allege specific facts showing the existence of a ministerial duty and its violation.

Petitioner has 30 days from the date of service of the Notice of the Court's signed order to file and serve an amended Petition.

Respondents shall prepare the Proposed Order consistent with this Tentative Ruling.